

Naresh Chand v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 22 January 2010 · Writ-C No. 40127 of 2009 · **Writ dismissed on clause 6.5 alternative remedy; stay vacated.**

HEADNOTE

On counsel stating that the petitioner would avail the alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court dismissed the writ and vacated the stay, without deciding the underlying electricity dispute.

FACTUAL SUMMARY

Naresh Chand filed Writ-C No. 40127 of 2009 in the Allahabad High Court against the State of Uttar Pradesh and others in an electricity supply dispute. On 6 August 2009 a Division Bench adjourned the matter so that counsel for the distribution licensee could take instructions, and it was listed again on 11 August 2009. When the petition was heard on 22 January 2010, counsel for the petitioner submitted that the petitioner would pursue the alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy under clause 6.5

HOLDING

Where the consumer elects to pursue the alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ petition is dismissed on that ground and any interim stay is vacated. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On counsel stating that the petitioner would avail the alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court dismissed the writ and vacated the stay, without deciding the underlying electricity dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNDERLYING ELECTRICITY DISPUTE

The Court did not examine the supply or billing complaint; disposal rested solely on the petitioner's election of clause 6.5. ¶ 1